1954: SHIRUR MUTT CASE
One of the earliest cases dealing with religious freedom, the Supreme Court judgment in this case laid down a 'doctrine of essentiality' to draw a line between 'essential' and 'non-essential' religious practices, to identify those protected by the Constitution. This has played a role in other cases, such as the 2018 Sabarimala temple judgment

2002: FATEHMA HUSSAIN CASE
When a young Muslim student was asked by the principal of her school to stop attending classes if she insisted on wearing a head scarf, she petitioned the Bombay High Court, saying the school's order violated her right to freely practice her religion. The court noted that she studied in an all-girls' school, and upheld the school's position that she adhere strictly to the official uniform

2015: NADHA RAHEEM CASE
Two Muslim students petitioned the Kerala High Court, saying the CBSE (Central Board of Secondary Education) dress code for exams—a half-sleeve kurta—violated their religious customs, which required a full-sleeve dress and a headscarf. The CBSE said the dress code was to prevent cheating, arguing that full-sleeve clothing or a headscarf could be used to conceal electronic devices. The court ruled that the students be allowed to dress according to their customs, but that they should appear half an hour early at the exam centre so that they could be checked

2016: AMNAH BINT BASHEER CASE
The Kerala High Court issued a judgment on a similar matter where the petitioner, a Muslim student appearing for the All-India Pre Medical Entrance Test, petitioned the court, saying the exam's dress code violated her right to practise her own faith as laid down in Art. 25. The court ruled that the dress code could not be enforced, but that the petitioner should appear early at the exam centre so she could be checked by invigilators


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Muslim populace. "Those reactions will only help the BJP grow," he says. Hindutva cannot be met on a purely political battlefield, it has to be via a newly fashioned cultural politics, according to him. And India's Muslim community, their organisations and leaderships—just like India's Dalits, avarnas and Adivasis—are at present not equipped for that fight, he feels. "They have internalised the BJP-RSS's thought processes."

Social scientist Shiv Visvanathan extends that analytical ground. Pointing out that Karnataka had all the makings of a progressive state, he feels it is regressing of late, in devastating ways, and it's "not just about the BJP". He says the minorities, for the first time, are discovering fetishisable facets to their minorityhood. "The stamp of identity is no longer citizenship, it is minorityhood," he says. Its most visible marker is the dress, and the unfortunate part is that it is being imposed on their school- and college-going children. "It's almost like a costume ball—and then that artificial drama of the alternative costume, saffron shawls," he adds.

In the midst of all the politics, no one is really thinking about education. Aliya and Shifa, another one of the six girls, voice their angst forcefully. "We are also tax-paying citizens. Why don't we have equal rights? Why are they making us sit in different classrooms, forcing only us to take online classes? We don't want to be singled out," they say. They have refused to take online classes, and exams are next month. Vani Tripathi, CBFC (Central Board of Film Certification) member and pro-right in her views, finds this aspect to be the real tragedy in a socio-political sense. For her, the overarching reality is that Muslim women in India are not seen as mainstream in terms of education and if a young Muslim girl is finding a channel of education, "one should abet that tremendous courage and journey she makes. That should never be challenged."

Visvanathan too highlights this. "Education already comes with anxiety," he says. "On that turf, you're forcing a conflict, even schools are being turned into problematic territory, and the political parties are manipulating that for five extra votes!" He believes they are trying to change the south. "Karnataka had a wealth of intellectuals, from Ananthamurthy to Shivaram Karanth," he says. "Now, name one intellectual who stood up and said anything." Visvanathan feels the situation could have been defused easily, but is not sure if anyone wants to solve the problem. "The court is dithering; it's sticking to etiquette, acting as if it's objective. We're not looking for objectivity, we're looking for truth." What happens to the children who get turned out of school because of the interim order, he asks, equally blaming the educational institutions for cowardice. "Will they dare to remove a bindi? Let's face it. The hijab doesn't harm, doesn't intrude. It's not dangerous. Yes, it's a statement of identity but it's also a celebration of the fact that so many Muslim girls are attending school." A celebration that may well be striated by mourning now.

Veiled Questions

The Indian public had already been handed a new bogey: the hijab. But the subjective experience of its wearer is rarely ever accounted for. Most hijabi women speak of convenience and freedom (Kamala Das did so too), but that functional aspect clearly does not exhaust all possibilities. The attire is itself beset with terminological confusions. The word 'hijab' refers only to the innocuous headscarf, but it has come to stand in for the whole gradation of Islamic women's attire (see *A Cover Story*)—a semantic function once served by the hold-all term 'purdah', from whose teasing intrigue Urdu poets have extracted plenty of amorous value. Innocent love has been a scarce commodity in India of late: the Islamic